ARRANGEMENT OF SECTIONS

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SCHEDULE: Penalties.

IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws made by the Plumtree Town Council:—

Title

1. These by-laws may be cited as Plumtree Town (Anti-litter) By-laws, 2025.

Application

2. These by-laws shall apply within the Plumtree Town area.

Interpretation

3. In these by-laws—

"council" means the Plumtree Town Council;

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"litter" includes any diapers, containers, wrappings, cartons, cigarette-packets, paper, vegetable matter, garden waste, hedge-clippings, dead animals, ash, tins, rubbish, bricks, stones, rubble, soil and any other matter or substance which is unwholesome, offensive or untidy;

"nuisance" means any injury, harm, damage, inconvenience or annoyance to any person which is caused in any way whatsoever by the improper handling or management of waste, including but not limited to, the storage, placement, collection, transport or disposal of waste or by littering;

"public place" includes bridges, enclosure, foot-path, garden, park, garage, car-park, open space, pavement, road, service lane, sidewalk, square, subway, street, mall or undeveloped land or any other area vested in or controlled by Council, to which the public, or any section of the public, has access;

"waste" means any substance, material or object, that is unwanted, rejected, abandoned, discarded or disposed of, or that is intended or required to be discarded or disposed of, by the holder of that substance, material or object, whether or not such substance, material or object can be re-used, recycled or recovered.

Provision of receptacle by owner or occupier of premise

4. (1) The owner or occupier of premises must take reasonable steps to ensure that sufficient and appropriate receptacles stipulated by Council are provided.

(2) The owner or occupier of premises must ensure that all receptacles on the premises for the collection of litter are—

(a) maintained in good condition;

(b) suitably placed and anchored so that they cannot be inadvertently overturned; and

(c) placed in locations convenient for the use by users or occupants of the premises to discourage littering or the unhealthy accumulation of waste.

(3) Any person who violates this section shall be liable to a fine not exceeding level.

Prohibition of littering

5. (1) No person shall—

(a) deposit or abandon, or cause or permit to be deposited or abandoned, any litter in a public place, except in the receptacle especially provided for the receipt of such litter; or

(b) sweep any waste into a gutter, onto a road reserve, road culvert, or onto any other public place; or

(c) disturb anything in, or remove anything from any receptacle which has been placed for the purposes of collecting litter in such a manner as to cause the contents of the receptacle to spill or fall onto the ground around it; or

(d) allow any person under his or her control to do any of the acts contemplated in paragraph (a), (b) or (c).

(2) Any person who violates this section shall be liable to a fine not exceeding level.

Prohibition of nuisance

6. (1) Any person handling waste within the Council, either through storage, collection, transportation, recycling or disposal shall—

(a) take reasonable measures to prevent nuisance, injury, harm, damage, annoyance or inconvenience to any person and the environment;

(b) take measures to remedy any spillages, harm, damage or nuisance referred to in section (1)(a); and

(c) at their own cost, clean any waste causing nuisance to any person or the environment:

Provided that the Council may clean or remedy litter causing nuisance to any person or the environment and claim costs incurred from the offender.

Unauthorised disposal or dumping

7. (1) No person shall dump, accumulate, place, deposit, dispose, leave or cause or allow to be dumped, accumulated, placed, deposited or left any litter whatsoever, whether for gain or otherwise, on or in a public place or open space or sanitary lane or servitudes.

(2) The council shall, at the expense of an owner or occupier of the land or person in control of the land, rehabilitate any damage caused to the environment as a result of the activity or failure of the person referred to in subsection (1) to take reasonable measures to prevent unauthorised disposal or dumping.

Abandoned articles

8. (1) Any article, other than a motor vehicle, deemed to have been abandoned in terms of the Plumtree Town (Abandoned Vehicles) By-laws, which, in the light of such factors as the place where it is found, the period it has been lying at such place and the nature and condition of such article, is reasonably regarded by the Council as having been abandoned, may be removed and disposed of by the Council as it may deem fit.

(2) The Council may remove and dispose of any article which is chained or fastened to any pole, parking meter or any other property belonging to the Council, without authorisation as it may deem fit.

Special removal of accumulated waste

9. When any category of waste defined in section 3, accumulates on premises so as to constitute or so as to render it likely that a nuisance will be created thereby, the Council may make a special removal of such waste and the owner or occupier of such premises on which waste has accumulated shall be liable in respect of such special removal to pay the applicable tariff charge as prescribed by Council.

Offences and penalties

10. Any person who contravenes any provision of these by-laws shall be liable to a fine specified in the Schedule.

SCHEDULE
PENALTIES

Section	Description of offence	Fixed Penalty (US$)
4	Fails to provide an adequate number of bins in and around his or her area of business	US$83,42
5	Illegal dumping: Residential Commercial	US$50,00 US$200,00
	Depositing litter in any public place	US$,00
	Sweep any waste into a gutter, road reserve or road culvert	US$20,00
	Burning litter in council storm water drains	US$20,00
	Burning litter in public dust bins	US$50,05
	Disturb anything in, or remove anything from any receptacles which has been placed for purposes of collecting litter	US0,00
6	Fails to pick up any litter which, in the exercise of his or her business, has fallen on any public place	US$0,00
6	Refuses to comply with an instruction issued by an authorised person in terms of section 4(2)	US$0,00
7	Deposits or abandons or causes or permits to be deposited or abandoned any form of litter in a public place	US$0,00

NB: The above penalties can be paid at the prevailing interbank rate and are exclusive of VAT.